



File No.: EXP202410108

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 3, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 3, 2024, a complaint was received by this Agency presented by Mr. A.A.A. (hereinafter, the complainant) against VILSAN COLECTIVIDADES, S.L. (hereinafter, the respondent) for not having duly attended to the right of access to the personal data of his minor daughter. The complainant states that he is the father of a minor (...) who has been enrolled in the educational center belonging to VILSAN COLECTIVIDADES, S.L. (respondent), and that, after being expelled from the center, he requested access to the photographs taken of the minor, as well as a copy of the document authorizing the processing of her data. He claims to have received a response from said entity on June 3, 2024, denying access to those photographs and failing to provide him with the authorization document for the processing of the minor's data.

He also points out that each teacher is the custodian of the images of minors taken in the classroom, which he considers to be an inappropriate practice, asserting that the center should be responsible for the collection of such images.

Along with the complaint, the following documents have been submitted:

- An email dated May 28, 2024, from the complainant sent to the respondent requesting that "(...) they instruct the teacher to prepare the belongings of B.B.B. that are in the school's possession, as well as the work done and the photographs to date."
- An email sent by the complainant to the respondent dated May 30, 2024, requesting that a copy of the photographs of the minor be provided to him on a USB drive "(...) Following the conversation with C.C.C. yesterday in which she indicated to me that she could only copy onto the USB drive the photos of the student B.B.B. that she has taken during the weeks she has been a teacher, since the rest of the photos of the student are in the possession of the teachers who have left the center for various reasons, I REQUEST that, (...) all those taken of the student during the current school year be included on said USB drive."

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Response from the responding party, dated 03/06/2024, denying access to the requested images, "Regarding the photos, you are aware of what is established in the Internal Regime Regulations (R.R.I.) of the School, having had another older child, and you yourself stated, publicly, in front of those present at the meeting held by the parents of your daughter's class with the (...) and the (...), saying verbatim, "(...)".

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Copy of the document sent by the claiming party to the responding party after receiving their response, in which, in summary, they reiterate their request.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the responding party for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The responding party states, in summary, that "(...) Once the file has been analyzed by the AEPD, it can be verified how the complainant intends through this means to preconstitute evidence to achieve an end by violating the regulations of our center, all based on these points: Any client (Parents or Guardians of students) has the contractual obligation to pay the monthly fees of the Nursery School for

the entire course, that is, from September 2023 to July 2024 (both included). The complainant does not want under any circumstances to pay the fee for July 2024, and that is why they are trying to preconstitute evidence via email indicating that they have been unilaterally expelled from the school by the center, which is false and completely unfounded since any sanctioning communication of that type MUST be made in writing, in order to justify it as an accredited center before the Community of Madrid and the repercussions it entails in relation to the SCHOLARSHIP, etc. What has happened is that immediately afterwards they request the documentation subject to this file alleging that it is a false obstruction to the data of their minor daughter, when this is false; we are simply indicating that we proceed to apply the center's regulations in cases of non-compliance due to non-payment as they voluntarily left the center prior to the end date of the course."

"(...) - Our organization has an Internal Regime Regulation (hereinafter, R.R.I.) published on August 31, 2019, and available publicly.

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From VILSAN we declare that there has been no expulsion of the minor, it has not been communicated in any case since there is no such expulsion, and we complete this argument by indicating that no document has been provided by (the claiming party) that evidences such expulsion of the minor. (...) Any sanctioning communication of that type MUST be made in writing, in order to justify it as an accredited center before the Community of Madrid and the repercussions it entails in relation to the SCHOLARSHIP, etc. (...)

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There is a contractual breach that originates from the claiming party, for not paying the corresponding monthly fees of (...). ("Clause 20.6. R.R.I. The non-payment of any month, and while the incident is resolved, the School reserves the right not to deliver photographs, video, images, and the...

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work carried out at the center, as it is considered part of our educational project, carried out by the center's staff.") (...)

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We consider that we are indeed Data Controllers of any image or document related to the minors enrolled in the center. With all our professionals, there is a confidentiality clause that implies no transfer to any person or company outside this center.

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The professionals who act in the center, within the scope of their functions and historically assimilated, collect within the Educational Project a follow-up that includes content, developed through different types of educational actions. The images that may be taken are part of this Project and will be considered educational photographs. In the event that they have been taken, sharing them with the parents or legal guardians is a matter that must be based on the R.R.I. The taking of such images is carried out by the professionals of the center as the executing arm of our educational project, and obviously under our responsibility for the corresponding processing.

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On the other hand, we have responded again on 17/08/2024 to the email originating the complaint, sending a copy of said document with the image authorization and citing the fact that a duplicate document was already delivered during its formalization, given that there is no problem in sharing said document and the fact that it was not sent earlier is due to our focus on arguing the lack of access, perceiving on our part that it was the central issue of the complaint." The complained party has provided a copy of said email as well as the authorization to photograph their daughter signed on January 31, 2023.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow understanding the claims of the complaining party to be satisfied. Consequently, on August 30, 2024, for the purposes provided in Article 64.1 of the LOPDGGD, the Presidency of the Spanish Agency for Data

Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the complained party a hearing procedure, so that within ten working days they could present the allegations they deemed appropriate, being duly notified on October 8, 2024, as recorded in the acknowledgment of receipt issued by the postal service. This Agency has no record of any response having been submitted by the complained party.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of C/ Jorge Juan, 6

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Digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complaining party. Consequently, on August 30, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint to be upheld."

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including the power to "order the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is stated in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

In accordance with Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, with the request being considered fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised on more than one occasion within a period of six months, unless there is a legitimate reason for doing so.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the

information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and evaluated, excluding the other issues raised by the parties.

In the case analyzed here, it has been established that the complaining party requested access from the responding party to the photographs of their minor daughter as well as a copy of the authorization document for the processing of the minor's data.

Regarding the photographs taken of the minor, the Guidelines 1/2022 on the right of access, from the European Data Protection Board, in its version of March 28, 2023, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data, and information about the processing itself. The data subject can also obtain a copy of the personal data being processed, while this possibility is not an additional right of the data subject, but rather the modality of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller will provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.”

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(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the applicant is being processed; second, access to that data; and third, information about the processing. These can be considered as three different components that together construct the right of access.

17.1.1.1. Confirmation of whether personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects must know is whether the data controller is processing data concerning them. Therefore, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data related to the applicant, the data controller must confirm this fact to that person. This confirmation may be communicated separately or may be included as part of the information about the personal data being processed (see below).

2.2.1.2 Access to personal data being processed

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Aside from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed in relation to them, or parts of the data,

depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in full even in cases where the requesting person initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

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(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in its entirety. Consequently, when the data controller processes data related to the data subject, the data controller will provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph 2. The data controller must take appropriate measures to ensure that the information is complete, accurate, and up-to-date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

(...)

42.1.1.

Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a) Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information about other matters, including general information about the data controller, its business models, or its processing activities unrelated to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Furthermore, a request for information about anonymous data or data that does not concern the requesting person or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requesting person by their own means, must be considered within the scope of the request.

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(...)

e) Do the interested parties wish to access all or part of the information processed about them?

51. Furthermore, the data controller must assess whether the requests made by the applicants refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the interested parties, must be clear and unequivocal. For example, if the interested parties literally request "information about the data processed in relation to them," the data controller must assume that the interested parties intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not

be interpreted as meaning that the interested parties wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the interested parties wish, with respect to the data they specify, to have access to the source or origin of the personal data or the specified storage period. In such a case, the data controller may limit their response to the specific information requested.

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023, states:

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted as meaning that the right to obtain from the data controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to allow the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679 must be interpreted as meaning that C/ Jorge Juan, 6

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The concept of "information" referred to exclusively pertains to the personal data for which the data controller must provide a copy in accordance with the first sentence of that section."

In the present case, the respondent denied access to the photographs of the minor, alleging non-payment of certain fees related to the service provided by the claimant, an argument that cannot be considered for the purposes of denying the right of access, as it has been pointed out, being an issue unrelated to the exercise of the right of access. The present authority lacks the competence to assess the circumstances described in relation to the contractual conditions between the parties, regarding the obligation or not to pay certain fees, and must refer to the competent authorities for their assessment.

Regarding the authorization document to process the personal data of the minor, the respondent delivered it on August 17, 2024, to the claimant, following the request of the present authority, which indicates that they did not respond to the request in a timely manner.

In accordance with Article 15 of the GDPR and the Guidelines 01/2022 of the EDPB, the right of access requires providing the data subject with a clear and complete response regarding whether their personal data is being processed, access to the personal data, if applicable, as well as supplying information about the processing of personal data. This includes the provision of a copy of the actual personal data, including, in certain cases, documents or extracts of documents. In this regard, according to the CJEU ruling of May 4, 2023, the right of access implies an authentic reproduction of the requested data, not a mere generic reference; it also indicates that the "right includes obtaining a copy of extracts from documents, or even entire documents, or extracts from databases, that contain, among others, such data, if the delivery of such a copy is essential to allow the data subject to effectively exercise the rights conferred by that Regulation."

In this case, the respondent did not adequately address the right of access, delaying the delivery of the requested document and failing to provide the photographs of the minor or an appropriate justification for their refusal. Therefore, it is appropriate to uphold the complaint that led to this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of

the GDPR have been infringed and to urge VILSAN COLECTIVIDADES, S.L. with NIF B85656163, to, within ten working days following the notification of this resolution, send the claimant a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could constitute an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to VILSAN COLECTIVIDADES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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